This incident illustrates how the "inconclusive" relationship between the judiciary and the executive has often marked the journey of the justice dispensation system. Though the judiciary has undoubtedly played a crucial role in upholding democratic principles and constitutional governance—and as multiple INDIA TODAY Mood of the Nation polls have found, it is still perceived to be Indian democracy's most trusted pillar—the excruciatingly slow judicial process, crippled by poor manpower and infrastructure, has resulted in a sense of despair among the masses, especially the poor and the marginalised who find the system expensive and intimidating.

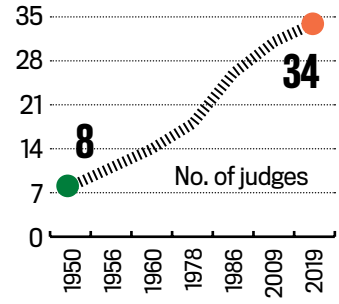
10,486
Cases pending in the Supreme Court for more than 10 years

While 76 per cent of the inmates in Indian jails are undertrials—mostly from the underprivileged sections—whose cases drag on for years, the courts are also burdened, as the Chief Justice of India-designate U.U. Lalit has pointed out, with the misuse of public interest litigations filed by publicity-hungry litigants.

The way forward is to urgently implement judicial reforms and strengthen the manpower and infrastructure of the courts. For this, the executive and the judiciary need to chalk out a collective path of more cooperation and less blame games. The sooner the better. ■

MANPOWER INCREASE IN THE SUPREME COURT

Parliament kept raising the sanctioned strength of judges in the apex court from time to time

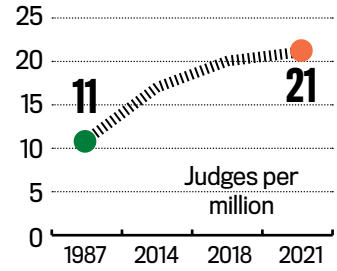


Source: The Supreme Court of India

11
THE NUMBER OF WOMEN AMONG THE 227 JUDGES APPOINTED TO THE SUPREME COURT SINCE ITS INCEPTION

FAR FROM IDEAL

The Law Commission of India in its 120th report in 1987 had recommended that the number of judges per one million population should be increased to 50. Three decades later, India is yet to reach even half the target



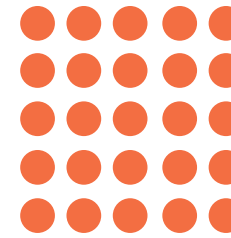
Source: Lok Sabha

2,400
Cases pending with every judge on an average in India

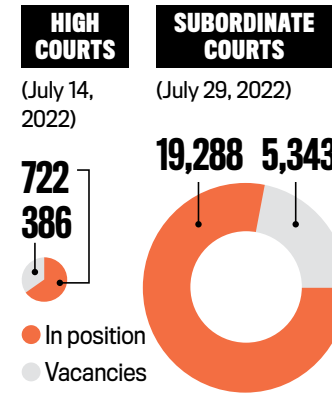
15%
of the nearly 2 million lawyers in the country are women

THE SPREAD OF HIGH COURTS





VACANCIES IN COURTS



Source: Lok Sabha

5.9
million cases are pending in various high courts; 1.3 million of these have been pending for more than 10 years

69
cases filed between 1950 and 1960 are still pending in high courts across India